



Example report with fictional data

All figures and dates are fictional and only illustrate the report contents.

FISCAL RESIDENCY REPORT

Fiscal Year 2026 · Art. 9 Spanish Personal Income Tax Law 35/2006 · 183-Day Rule

TAXPAYER DETAILS

Name: Alex Rivera

Passport: X1234567Z

Generation date: July 31, 2026

Reference no.: TN-20260731-2672

PHYSICAL PRESENCE SUMMARY IN SPAIN

57

DAYS IN SPAIN

Legal limit (183 days):

183 days

Remaining days:

126 days

Percentage used:

31.1%

SAFE

DETAIL OF PERIODS IN SPAIN

Start date	End date	Days
05/01/2026	20/01/2026	16
02/02/2026	12/02/2026	11
02/03/2026	18/03/2026	17
11/08/2026	23/08/2026	13
TOTAL UNIQUE DAYS IN SPAIN		57

CENTRE OF ECONOMIC INTERESTS (ART. 9 LAW 35/2006)

Self-assessment questionnaire completed by the user. Article 9 of the Spanish Personal Income Tax Act (Law 35/2006) also takes into account the centre of economic interests: the place where the main nucleus or base of the taxpayer's activities or economic interests is located, regardless of the 183-day count.

1. Where does your close family (spouse or children) live?
— Abroad
2. Where do you generate most of your income?
— Mainly abroad
3. Where is your habitual residence?
— No fixed habitual residence
4. From where do you run your professional activity or businesses?
— From abroad

WEAK TIES

INDICATIVE ASSESSMENT

The answers suggest that the centre of economic interests points mostly outside Spain. Even so, the tax authority assesses every case individually.

Indicative assessment based solely on the user's answers. It does not constitute nor replace professional tax advice.

HYPOTHETICAL SCENARIO COMPARISON

Scenarios saved by the user: hypothetical stays projected on top of the recorded real stays. Overlapping days are counted only once.

Scenario	Days in Spain	Days left	Risk
Current situation (no scenario)	57	126	SAFE
Verano en Mallorca	78	105	SAFE
Puente de diciembre	67	116	SAFE

CONCLUSION

As of the current date, Alex Rivera has recorded a total of 57 days of physical presence in Spanish territory during the 2026 fiscal year. This duration accounts for 31.1% of the 183-day statutory limit prescribed by Article 9 of the Spanish Personal Income Tax Act (Law 35/2006). Following the consolidation of overlapping periods, it is confirmed that the subject does not exceed the threshold for tax residency under the physical presence test.

LEGAL NOTICE

This document is an automatically generated data summary by TaxNomad and does not constitute official legal or tax advice. Validate this report with a qualified tax advisor before any administrative procedure or tax filing.

METHODOLOGY AND SOURCES

Day-counting methodology

Physical presence in Spain is computed from the stays recorded by the user, applying these rules:

- Each stay counts every calendar day between its start and end dates, both inclusive.
- Overlapping stays are consolidated: duplicated days are counted only once in the unique total.
- Following the DGT criterion on sporadic absences, the tool counts the stays exactly as declared; temporary absences are not deducted automatically.

Official sources

The report is based on the following regulations and interpretative criteria:

Article 9 of Law 35/2006 (PIT Act)

<https://www.boe.es/buscar/act.php?id=BOE-A-2006-20764#a9>

A person is considered tax resident in Spain if they spend more than 183 days in Spanish territory during the calendar year. Temporary absences count as presence unless tax residency in another country is proven.

DGT · Sporadic absences (binding rulings)

<https://sede.agenciatributaria.gob.es/Sede/normativa-criterios-interpretativos/doctrina-criterios-interpretativos.html>

The Directorate-General for Taxes (DGT) interprets that sporadic absences count as days of presence in Spain, unless the taxpayer proves tax residency in another country. Criterion set out in its binding rulings.

DGT · Centre of economic interests (binding rulings)

<https://sede.agenciatributaria.gob.es/Sede/normativa-criterios-interpretativos/doctrina-criterios-interpretativos.html>

The DGT considers that the main nucleus or base of economic interests lies in Spain when most of the taxpayer's personal income tax base is generated there. Criterion set out in its binding rulings.

DGT · Double taxation treaties (doctrine)

<https://sede.agenciatributaria.gob.es/Sede/normativa-criterios-interpretativos/doctrina-criterios-interpretativos.html>

The Directorate-General for Taxes (DGT) applies double taxation treaties (DTTs) with precedence over domestic law: tie-breaker criteria (permanent home, centre of vital interests, habitual abode, nationality) resolve dual-residency conflicts.

PROFESSIONAL DISCLAIMER

This report is an automated summary of user-provided data based on the sources listed above. It does not constitute legal or tax advice, not even in its advisor-branded version. Tax residency is determined by the tax authority on a case-by-case basis; always validate this document with a qualified tax advisor before any administrative procedure or tax filing.